



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

MAY 25 2001

DOT-E 12606
(SECOND REVISION)

EXPIRATION DATE: April 30, 2003

1. GRANTEE: Toyota Motor Sales, USA
Torrance, CA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-way transportation in commerce of air bag modules and seat-belt pretensioners from the port of entry to a distribution facility, without the "EX" number on the shipping papers. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171.12(b)(19) in that indicating "EX" numbers on shipping papers is waived; and § 172.301(c) in that marking packagings with the exemption number is waived.
5. BASIS: This exemption is based on the application of Toyota Motor Sales, USA dated March 15, 2001, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Air bag modules, pyrotechnic	9	UN3268	III
Seat-belt pretensioners, pyrotechnic	9	UN3268	III

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packagings are UN 4G fiberboard boxes, as prescribed in the HMR for the materials described in paragraph 6 above.
- b. Only those airbags/seat-belt pretensioners approved in accordance with § 173.166 may be transported under the terms of this exemption.

8. SPECIAL PROVISIONS:

- a. The one-way transportation is only authorized from the Port of Los Angeles/Long Beach, CA to Ontario, CA via highway motor vehicle under contract to Toyota Motor Sales.
- b. A copy of each Competent Authority Approval for the Classification of Explosives for each device offered under the terms of this exemption must be on file at the Toyota Motor Sales distribution facility in Ontario, CA and the corporate office in Torrance, CA.
- c. The part numbers for each device offered under this exemption must be traceable to the appropriate Competent Authority Approval. The list of applicable part numbers and associated Competent Authority Approvals must be made available to a DOT representative upon request.
- d. The following statement must be entered on each shipping paper that accompanies the devices authorized under this exemption:

DOT-E 12606, EX numbers and competent authority approvals are available through the Toyota Motor Sales' Materials Compliance Group. Contact (310)974-5698 for information on these products.

- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
- 10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

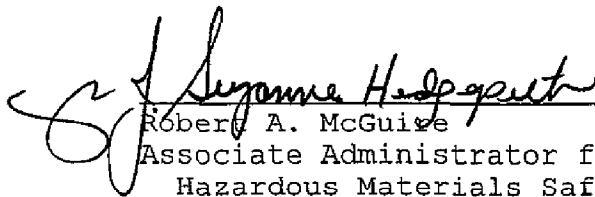
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

MAY 25 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: AM